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Case Number: 25SMCV01212 Hearing Date: September 23, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

DAVID LANCE ARMSTRONG,

Plaintiff,

v.

655 KELTON LP, et al.,

Defendants.

Case No.: 25SMCV01212

Hearing Date: September 23, 2026

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTIONS TO COMPEL

RESPONSES TO FORM

INTERROGATORIES, SET ONE;

SPECIAL INTERROGATORIES, SET ONE;

DEMAND FOR PRODUCTION, SET ONE;

MOTION TO DEEM ADMITTED

REQUESTS FOR ADMISSION AND

REQUEST FOR SANCTIONS, AGAINST

DEFENDANT 655 KELTON, LP

BACKGROUND

This is a slip and fall case. Plaintiff David Lance Armstrong was delivering food to an apartment building located at 655 Kelton Avenue, Westwood, California when he slipped on a wet substance and fell.

He has sued three defendants: 655 Kelton, LP, Amir Development Co. and WA Management, LLC. Plaintiff claims that they were on notice of the dangerous condition and failed to warn or remedy. His complaint alleges two causes of action for negligence and premises liability.

On November 18, 2025, Plaintiff propounded four sets of discovery requests on 655 Kelton LP: Form Interrogatories (set one) (FROGs); Special Interrogatories (set one) (SROGs); Requests for Production of Documents (set one) (RFPs), and Requests for Admissions (set one) (RFAs). The discovery requests were served by e-mail. Responses were due by December 30, 2025, 30 days plus 2 court days for email service.

655 Kelton LP did not respond within the statutory deadline. Many months later, on July 30, 2026, Plaintiff's counsel emailed defense counsel regarding the overdue responses. Defense counsel requested an extension to September 1, 2026 to provide responses without objections. They claimed that the failure to provide responses was due to a scheduling error. (Ex. A to Opp.)

Plaintiff's counsel agreed to an extension to August 14, 2026. Defendants did not provide responses by August 14, 2026. They provided responses on September 2, 2026, which is one day after their own requested extension date.

This hearing is on Plaintiff's four motions to compel responses to Form Interrogatories (Set One) ("FROGs"), Special Interrogatories (Set One) ("SROGs"), Document Demands (Set One) ("RFPs"), motion to deem admitted Requests for Admissions ("RFAs") and request for sanctions.

LEGAL STANDARD

A motion to compel an initial response can be made on the ground that a party did not serve a timely response. (Code Civ. Proc., § 2030.290, subd. (a), § 2031 subd. (a) and (b); see *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.) *cc* Failing to timely respond waives any objections. (CCP § 2030.290(a).) *cc*

To move to compel initial responses, a movant must show: (1) proper service (see Code Civ. Proc., § 2030.080, subd. (a)); (2) expiration of the deadline for the initial response, 30 days after service or on date agreed to by the parties (see Code Civ. Proc., § 2030.260, subds. (a), (b)); and (3) no timely response (see Code Civ. Proc., § 2030.90).

There is no “meet and confer” requirement where there is a total failure to respond to discovery. (Sinaiko, 148 Cal.App.4th at 411.) There is also no separate statement requirement for a motion to compel initial responses. (Cal. Rules of Court Rule 3.1345(b).)

Where the court grants a motion to compel responses, sanctions shall be imposed against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel, unless the person or entity acted with substantial justification or the sanction would otherwise be unjust. (Code Civ. Proc., §§ 2030.290, 2031.90, 2033.280, subds. (c); Cal. Rule of Court, rule 3.1348.)

In addition, the court may award sanctions for any misuse of discovery process. (Code Civ. Proc. §§ 2023.010 and 2023.030.) A failure to timely respond constitutes a misuse of the discovery process. (Code Civ. Proc. § 2023.010, subd. (d).)

DISCUSSION

Interrogatories

Code Civ. Proc. § 2030.290(a) provides that if a party fails to serve a timely response to served interrogatories, that party waives any objections, and the propounding party may move for an order compelling responses thereto. Defendant's responses to Plaintiff's FROGs and SROGs were due by December 30, 2025. Plaintiff granted an extension to August 14, 2026 so long as the responses did not contain objections. Defendant belatedly served its responses on September 2, 2026. Accordingly, the motion to compel responses to the interrogatories is moot.

Document Demands

Code Civ. Proc. § 2031.300 (a) and (b) provides that if a party fails to serve a timely response to a demand for production, that party waives any right to serve objections to the demand, including ones based on privilege or work product protection, and the propounding party may move for an order compelling responses thereto. Defendant's responses to Plaintiff's RFPs were originally due by December 30, 2025. Plaintiff extended the deadline to August 14, 2026. Defendant served its late responses on September 2, 2026. Accordingly, the motion to compel responses to the RFPs is now moot.

Requests for Admissions

Where a party fails to timely respond to a request for admission, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) The party who failed to respond waives any objections to the demand, unless the court grants them relief from the waiver, upon a showing that the party (1) has subsequently served a substantially compliant response, and (2) that the party's failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2033.280, subds. (a)(1)-(2).)

Here, Plaintiff's responses to Defendant's RFAs were due by December 30, 2025. Defendant did not serve responses until September 2, 2026. Accordingly, Defendant is deemed to have admitted the requests for admissions unless they can show that the September 2 responses they served were “substantially compliant” and that their failure to timely respond was the result of mistake, inadvertence or excusable neglect.

Defendant submitted a declaration from its counsel who does not explain the failure to timely respond. Instead, Defendant's opposition attempts to shift blame to Plaintiff for alerting counsel to Defendant's duty to respond, months after the responses were due, and refusing to extend Defendant's time to respond for an additional 30 days. None of these facts explain why Defendant failed to timely respond. Plaintiff is not obligated to remind Defendant of its deadline to respond to discovery requests. Nor is Plaintiff required to provide extensions to Defendant.

In addition, Defendant's counsel attests that responses to the RFAs were served on September 2, 2026. The responses are not attached to the opposition, and Defendant has not shown that the responses are substantially compliant. Indeed, defense counsel does not even attest in his/her declaration that the responses are substantially compliant.

Defendant attempts to excuse its failure to timely respond by arguing that Plaintiff is not prejudiced because trial is in January 2028. But prejudice is not a requirement on a motion to deem RFAs admitted. And the fact that trial is in 2028 does not mean that Defendant can just ignore a discovery request. Accordingly, the Court deems the RFAs admitted by 655 Kenton LP.

Sanctions

Regardless of the reason or excuse for the delay in responding to RFAs, it is mandatory that the court impose a monetary sanction on a party whose failure to timely respond to the RFAs necessitated the motion. (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 634; Code Civ. Proc., § 2033.280(c).) While delayed responses may avoid a motion to deem admitted, they will not avoid monetary sanctions. (Code Civ. Proc., § 2033.280 subd. (c); Gonzales v. Harris, 2021 Cal. Super. LEXIS 29267 at *6 (even if delayed responses are served, sanctions are mandatory because the motion had to be brought, regardless of whether it is ultimately denied because responses are served before the hearing).)

Further, the Court may also impose sanctions for the failure to timely respond to the FROGs, SROGs and RFPs. Code Civ. Proc. § 2030.290 states: "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Likewise, Code of Civil Procedure § 2031.300 states: "(c) Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Although §§ 2030.290 and 2031.300 impose sanctions only when a party unsuccessfully makes or opposes a motion to compel, Local Rule 3.1348 allows the Court to impose sanctions "in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed."

Moreover, the Court may award sanctions for discovery abuses which include the failure to timely respond to discovery. (Code Civ. Proc., §§ 2023.010 subd. (d), 2023.030.) "Courts are authorized to exercise their discretion to award discovery sanctions for abuse of the discovery process." (NewLife Sciences, LLC v. Weinstock (2011) 197 Cal.App.4th 676, fn. 10 (citing Code Civ. Proc., §§ 2023.010, 2023.030).)

The Court concludes that sanctions are warranted given Defendant's failure to timely respond. In determining the appropriate amount of sanctions, the Court starts with the lodestar which is the reasonable hourly rate multiplied by the reasonable hours spent. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Plaintiff's counsel (Robert Booker) seeks an hourly rate is \$1000. He has been practicing law for over 20 years. He was a partner at his prior firm and is the senior managing attorney of his current firm (The Law Offices of Jacob Emrani). He is a graduate of Pepperdine Law School.

Mr. Booker's declaration does not provide any support for his requested rate, other than his 20+ years practicing as a lawyer. There is no indication that his \$1000 requested hourly rate was approved by any court; there is no declaration from an attorney at a different firm attesting to the hourly rates of personal injury lawyers with 20+ years experience, and Mr. Booker does not provide any third party report or survey (e.g., the Real Rate Report) that would shed light on prevailing market rates for attorneys with experiences and backgrounds similar to his. Accordingly, the Court will award sanctions based on a \$500 hourly rate.

As to the hours spent on the motion, Plaintiff seeks four hours as to each motion, two hours to draft the motion and prepare the supporting documentation, one hour to prepare a reply, and one hour to prepare for and attend the hearing. As there is only one hearing on all four motions, the Court will only award an hour total for time to prepare for and attend the hearing. As to the other hours, the Court concludes they are reasonable.

Plaintiff also seeks costs in the amount of \$60 for each motion. The costs are for filing fees. The Court concludes that these costs are also reasonable.

In sum, the Court will award fees of and costs of \$6,740 ($3 \times \$500 \times 4 + \240).

CONCLUSION

Based on the foregoing, the Court DENIES IN PART and GRANTS IN PART Defendant's motions to compel and request for sanctions. The Court will award sanctions in the amount of \$6,740 jointly and severally against Defendant and its counsel.

IT IS SO ORDERED.

DATED: September 23, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court